

Opinion of the Court

Invoking his authority under the IEEPA, the President, in February 2012, issued an Executive Order blocking “[a]ll property and interests in property of any Iranian financial institution, including the Central Bank of Iran, that are in the United States.” Exec. Order No. 13599, 3 CFR 215 (2012 Comp.). The availability of these assets for execution, however, was contested.³

To place beyond dispute the availability of some of the Executive Order No. 13599-blocked assets for satisfaction of judgments rendered in terrorism cases, Congress passed the statute at issue here: § 502 of the Iran Threat Reduction and Syria Human Rights Act of 2012, 126 Stat. 1258, 22 U. S. C. § 8772. Enacted as a freestanding measure, not as an amendment to the FSIA or the TRIA,⁴ § 8772 provides that, if a court makes specified findings, “a financial asset . . . shall be subject to execution . . . in order to satisfy any judgment to the extent of any compensatory damages awarded against Iran for damages for personal injury or death caused by” the acts of terrorism enumerated in the FSIA’s terrorism exception. § 8772(a)(1). Section 8772(b) defines as available for execution by holders of terrorism judgments against Iran “the financial assets that are identified in and the subject of proceedings in the United States District Court for the Southern District of New York in Peterson et al. v. Islamic Republic of Iran et al., Case No. 10 Civ. 4518 (BSJ) (GWG), that were restrained by restrain-

dence over “any other provision of law,” as the TRIA does. See TRIA § 201(a). Hence, the FSIA’s central-bank immunity provision, see *supra*, at 217, limits § 1610(g), but not the TRIA.

³As a defense to execution, Bank Markazi contended that the blocked assets were not assets “of” Bank Markazi. See TRIA § 201(a). Referring to state property law, Bank Markazi asserted that the assets were “of” a financial intermediary which held them in the United States on Bank Markazi’s behalf. See App. to Pet. for Cert. 96a–100a.

⁴Title 22 U. S. C. § 8772(a)(1) applies “notwithstanding any other provision of law, including any provision of law relating to sovereign immunity, and preempt[s] any inconsistent provision of State law.”